		strike. Indeed, counsel even sought reimbursement for drafting the client retention agreement, which does not appear to have been limited to anti-SLAPP measures given the hours counsel billed for other work. Counsel's willingness to flout the statutory restriction on the scope of anti-SLAPP fee claims justified the trial court in taking a jaundiced view of the fee request. (*Christian Research Institute, supra*, 165 Cal.App.4th at 1324-25.) Here, the billing entries identified by Plaintiff do not relate to Defendant Berger's anti-SLAPP motion. The entries therefore are unreasonable. Defendant has not filed a reply contending otherwise. By failing to argue the contrary effectively concedes this issue. (*DuPont Merck Pharmaceutical Co. v. Sup. Ct.* (2000) 78 Cal.App.4th 562, 566.) Accordingly, the amount awarded will be reduced by $8,840.00 (13.6 hours x $650/hour rate). Therefore, the motion is GRANTED in the amount of **$20,280 (**$29,120.00- $8,840).
12	**Somers vs. FCA US LLC** **2023-01352879**	**1. Motion for Attorney Fees** Plaintiff Peter Raymond Somers's Motion for Attorney Fees For Time Actually Expended and Reasonably Incurred is GRANTED in the reduced amount of $32,307.61 for total attorney fees and costs. This case settled on 8/12/24 after mediation. On 8/13/24, Plaintiff filed a notice of conditional settlement. Thereafter, the parties were unable to privately agree on the reasonable attorney fees and costs. As a result, Plaintiff filed the instant motion and a memorandum of costs on 12/9/24. Plaintiff seeks a total amount of $37,312.81 (i.e., attorney fees in the amount of $35,101.50 and costs in the amount of $2,211.31). There is no dispute between the parties that Plaintiff is entitled to fees and costs/expenses. The issue in dispute is the amount of attorney fees. Defendant argues Plaintiff should recover no more than $19,861.78 in fees and does not oppose the requested costs. If a plaintiff prevails in a Song-Beverly action, they "shall be allowed by the court to recover as part of the judgment a sum

		equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).) Courts use the lodestar adjustment method to determine the amount of attorney's fees to award in Song-Beverly actions. (*Reynolds v. Ford Motor Co.* (2020) 47 Cal.App.5th 1105, 1112.) "[T]he lodestar is the basic fee for comparable legal services in the community." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132 (*Ketchum*).) It is based on the careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case. [The California Supreme Court] expressly approved the use of prevailing hourly rates as a basis for the lodestar… In referring to "reasonable" compensation, [the Court] indicated that trial courts must carefully review attorney documentation of hours expended; "padding" in the form of inefficient or duplicative efforts is not subject to compensation. (*Id*., at p. 1131-1132 [cleaned-up].) "The amount of attorney fees awarded pursuant to the lodestar adjustment method may be increased or decreased. Such an adjustment is commonly referred to as a 'fee enhancement' or 'multiplier.'" (*Mikhaeilpoor*, supra, 48 Cal.App.5th at 247 [cleaned-up].) The lodestar may be adjusted based on factors which include (1) the complexity of the case, (2) the attorney's skills, (3) the results achieved; (4) whether the case was taken on a contingency. (*Ketchum*, supra, 24 Cal.4th at 1132-1134.) "The purpose of [the] adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services." (*Id.* at 1132.) "In exercising its discretion to award a multiplier for contingent risk, the trial court 'should consider whether, and to what extent, the attorney and client have been able to mitigate the risk of nonpayment, e.g., because the client has agreed to pay some portion of the lodestar amount regardless of outcome.' It should also consider the extent to which taking the case on a contingent fee basis has precluded the attorney from taking other fee-generating work." (*Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179, 1188 [cleaned-up].) "The trial court is

neither foreclosed from, nor required to, award a multiplier." (*Mikhaeilpoor*, supra, 48 Cal.App.5th at 247.)

"The prevailing party and fee applicant bears the burden of showing that the fees incurred were ... reasonably necessary to the conduct of the litigation and were reasonable in amount.… [I]f the prevailing party fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, then the court must take this into account and award attorney fees in a lesser amount." (*Mikhaeilpoor*, supra, 48 Cal.App.5th at 247 [cleaned-up]; see also *Save Our Uniquely Rural Community* Environment, supra, 235 Cal.App.4th at 1186 [It is not enough merely to state that counsel expended a certain number of hours in representing the client; fees motion must affirmatively demonstrate that the hours spent were reasonable and necessary].)

"'[T]he lodestar method vests the trial court with the discretion to decide which of the hours expended by the attorneys were 'reasonably spent' on the litigation and to determine the hourly rates that should be used in the lodestar calculus." (*Mikhaeilpoor*, supra, 48 Cal.App.5th at 246-247 [cleaned-up].) "The experienced trial judge is the best judge of the value of professional services rendered in his court…" (*Ketchum*, supra, 24 Cal.4th at1132.)

Hourly Rate

The general rule is as follows: "The reasonable hourly rate is that prevailing in the community for similar work. The relevant 'community' is that where the court is located." (*Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc.* (2014) 226 Cal.App.4th 26, 71 [cleaned up].) In the absence of evidence to the contrary, a moving party's showing of rates that have been upheld, "compel[] a finding that the requested hourly rates were within the reasonable rates for purposes of setting the base lodestar amount." (*Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140156.)

To support the attorney hourly rates claimed, Plaintiff submits the Declaration of Michael Seedian, Esq. of The Lemon Law Pros, LLP wherein includes a summary of the experience of each attorney and paralegal who litigated this case. (Seedian Decl. ¶¶ 2-8.) Seedian also lists several recent (2023-2024) superior court lemon law cases in southern California where his firm's rates were awarded in full. (Seedian Decl. ¶¶ 18-19.)

Seedian contends the court should use the Laffey Matrix, to which he provides a link, to determine the reasonable rate and cites to several California state appellate cases that have cited the Laffey Matrix as a reasonable source of attorney lodestar fees. (Seedian Decl. ¶ 16.) In the motion, Plaintiff argues his firm's rates are reasonable because they are below the contingency rates reflected in the Laffey Matrix after adjusting the matrix rates to California.

Defendant urges the Court to use the same analysis that was performed in *Arias v. Ford Motor Co., No.* (C.D. Cal., Jan. 27, 2020) WL 1940843, where the court used the 2018 "Real Rate Report: The Industry's Leading Analysis of Law Firm Rates, Trends, and Practices" (the "Real Rate Report") to reduce the rates sought by the plaintiff's attorneys.

Plaintiff argues the 2023 Real Rate Report is for traditional pay-as-you-go retainer legal work such as defense attorney's work and is inapplicable to Plaintiff unless adjustments are made to account for contingency risk and delay of payment. In support of this position, Plaintiff quotes *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132: "A contingent fee must be higher than a fee for the same legal services paid as they are performed. The contingent fee compensates the lawyer not only for the legal services he renders but for the loan of those services. The implicit interest rate on such a loan is higher because the risk of default (the loss of the case, which cancels the debt of the client to the lawyer) is much higher than that of conventional loans."

The parties ask this court to use two competing objective sources of data to determine Plaintiff's counsel's reasonable hourly rate. Because the 2023 Real Rate Report includes data about Plaintiff's counsel's practice area, whereas the Laffey matrix does not, the court finds the 2023 Real Report is more relevant to this analysis. (*Arias, supra*, 2020 WL 1940843, at *4.) Our Supreme Court has repeatedly explained that the reasonable hourly rate used for the lodestar calculation "is that prevailing in the community for *similar work*." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095 (italics added); see *Ketchum, supra*, 24 Cal.4th at p. 1132, 104 Cal.Rptr.2d 377, 17 P.3d 735 ["the lodestar is the basic fee for *comparable legal* services in the community" (italics added)].) Further, the list of recent superior court lemon law cases where Plaintiff's counsel's firm was awarded its rates in full do not establish that

		those rates in fact are the prevailing rates in the community for similar work. In addition, Plaintiff's concerns about the contingency risk assumes such a risk applies in this case. For the reasons stated in *Arias*, a case cited by Defendant, the court finds such a risk is relatively low in this case. *Arias* is a lemon law case wherein the plaintiff filed a fee motion seeking hourly rates between $350 and $650 for its partners and between $250 and $450 for its associates. (*Arias, supra,* 2020 WL 1940843, at *3.) The court turned to the 2018 Real Rate Report, describing it as "a useful guidepost to assess the reasonableness of these hourly rates in the Central District . . . [which] identifies attorney rates by location, experience, firm size, areas of expertise and industry, as well as specific practice areas, and is based on actual legal billing, matter information, and paid and processed invoices from more than eighty companies . . . [and] is 'a much better reflection of true market rates than self-reported rates in all practice areas.'" (*Ibid*.) The *Arias* court acknowledged the 2018 Real Rate Report showed that in Los Angeles, partners practicing in general litigation had hourly rates ranging from $220 to $715, and associates from $175 to $425. The court found "[h]owever, more relevant to Plaintiff's counsel's area of practice, partners litigating consumer goods cases nationwide have a lower average hourly rate of between $254 and $350, and associates between $205 and $265." (*Id*. at *4.) Based on this date, the court ruled the rates sought "outpace[d] the prevailing rate for similar work" and reduced them to $325 for all partners "across the board" and to $225 for the associates. (*Ibid*.) The court left the requested paralegal rate of $200 undisturbed because it was "consistent with similar work." (*Ibid*.) The plaintiff in *Arias* then argued that a 0.5 multiplier was warranted due to the risk of taking the case on a contingent fee basis and the defendant argued that a negative multiplier was appropriate because, among other things, there was very little contingent risk since the Song-Beverly Act is a fee-shifting statute. (Id. *5.) The court did not believe a negative multiplier was warranted because "it implicitly considered Defendant's arguments for doing so when it adjusted Plaintiff's counsel's hourly rates to make them consistent with the Real Rate Report, which reflects the usual rates in the community for

similar work. (*Ibid*.) The court also did not believe a positive multiplier was warranted for several reasons, including that 'a contingent fee agreement only favors an upward departure when there is an "uncertainty of prevailing on the merits and of establishing eligibility for the award.' [Citation.] Here, the Song-Beverly Act statutorily authorizes an award of attorney's fees to a party prevailing on its claim. Given that Plaintiff's counsel regularly undertakes this type of work, the Court does not find that counsel reasonably faced an uncertainty of prevailing on the merits. [Citation.] Thus, this factor does not persuasively weigh in favor of an upward departure." (*Ibid* [citations omitted].)

Similarly, here, since Plaintiff's counsel regularly undertakes California lemon law cases (see Seedian Decl., ¶2), the court does not find that counsel reasonably faced an uncertainty of prevailing on the merits.

According to Defendant, if this court uses the most recent 2023 Real Rate Report, the senior attorney rate-in the context of consumer goods litigation-should be capped at $495/hour and the associate rate should be capped at $295/hour. Defendant also argues a rate of $150/hour is a more reasonable rate routinely applied by superior court judges for clerical/paralegal work in the context of lemon law fee motions.

Defendant is correct with respect to the $495 rate for litigation partners; however, the 2023 Real Rate Report caps the rate for litigation associates at $371 not $295. With respect to the paralegal rate, Defendant provides no evidence to support a finding that Plaintiff's requested rate of $250 is unreasonable. (See *Arias*, *supra*, 2020 WL 1940843, at *4 [finding a rate of $200/hr to be "consistent with similar work" for paralegals].)

The court therefore caps the partner, managing attorney, and senior associate rates at $495/hr, caps the associate rates at $371/hr, and awards the requested rate of $250/hr for paralegal work.

Time Spent on Tasks

The billing records submitted by Plaintiff indicates Lemon Law Pros spent 77.6 hours litigating this action.

		Defendant argues the Court should reduce billing by at least 35 percent by disputing nine "entries" that it claims are excessive, duplicative, vague, or otherwise unreasonable billing. When a party challenges the reasonableness of the number of hours billed, it has the burden "to point to the specific items challenged, with a sufficient argument and citations to the evidence." (*Premier Med. Mgmt. Sys., Inc. v. Cal. Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564). "General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (*Ibid*.) Defendant has failed to meet this burden. First, Defendant provides virtually no argument as to many of the listed items. For example, for the first item to which Defendant objects ("Total of $1,100.00 (4.4 hours) billed on 10/13/2023 by JLA for research of NHTSA database regarding recalls and certain technical service bulletins. See Ex. A at 2."), Defendant merely argues "The amount billed is excessive, and it is unclear why the research of this magnitude was necessary." (See Opp. p. 6:10-12.) Defendant fails to explain why it believes 4.4 hours researching at least three vehicle diagnostic trouble codes, 13 applicable recalls and 461 technical services bulletins is unreasonable. (See Seedian Decl., Ex. A, p. 2.) Further, as explained by Plaintiff in its reply, "While counsel for FCA has ample access to FCA technically trained employees to find out information, Plaintiff has no such access. In order to understand the repairs and history for purposes of litigation and valuation of the case, Plaintiff needs to initially research specific items from the RO to figure out if the complaints are common or unique – this goes toward the reasonableness of the repair efforts. Plaintiff typically assigns this work to lower priced staff to gather the information for later use by attorneys. It is cost-prohibitive to involve an automotive expert at the start of the case and it would be expected that FCA and any reviewing court will claim such use is unreasonable, absent very specific facts indicting such was necessary and required." (Reply, 7:27-8:8.) Second, many of the "entries" Defendant contends are excessive, duplicative, vague, or otherwise unreasonable are not specific entries listed in Plaintiff's billing records. Instead, Defendant combined individual legal tasks and then disputes the alleged block-billed total. For example, Defendant states the following is excessive: "Total of $4,070.50 (**7.2 hours**) billed by AO billing $695/hour and JLA billing $350/hour in

connection with review/analysis of FCA's responses to Plaintiff's discovery requests. *See* Ex. A at pages 6-7." Given that Defendant lists two timekeepers "AO" and "JLA", Defendant fails to individually list the offending billing entries, their specific descriptions provided in the billing or even to provide the dates of the offending entries. It is Defendant's burden "to point to the specific items challenged." (*Premier Med. Mgmt. Sys., Inc., supra,* 163 Cal.App.4th at 564.)

The court finds Defendant has failed to establish that 77.5 hours litigating a case that is 1.5 years old is unreasonable.

Summary of Lodestar

Adjusting the hourly rate as discussed above, Plaintiff's request for attorney fees is GRANTED in the reduced amount of $30,085.30 as outlined below:

TK	Name	Hours	Rate	Total
MS	Michael Saeedian, Esq.	2.9	$495	$1,435.50
AO	Adina Ostoia, Esq.	23.3	$495	$11,533.50
CU	Christopher Urner, Esq.	7.1	$495	$3,514.50
JLA	Jorge L. Acosta, Esq.	20.8	$371	$7,716.80
SA	Sergo Aivazov, Esq.	0.2	$300	$60.00
JLA/EG	Paralegals	23.3	$250	$5,825.00
		Total Fees		**$30,085.30**

<u>Costs</u>

The instant motion requests of $2,211.31 in costs. After the time has passed for a motion to strike or tax costs or for determination of that motion, the clerk must immediately enter the costs on the judgment. (Cal. Rules of Court, Rule 3.1700(b)(4).) The deadline to file a motion to strike or tax costs is 15 days after service of the cost memorandum. (Cal. Rules of Court, Rule 3.1700(b)(1).)

Here, Plaintiff filed a Memorandum of Costs on 12/9/24. Defendant has not filed a motion to strike or tax costs and states in its opposition that it does not challenge the claimed litigation costs and expenses.

Therefore, Defendant's request of $2,211.31 in costs is GRANTED.

		Plaintiff to give notice.
14	**Brykrist Development, Inc. vs. Stewart** **2024-01372682**	**Motion for Summary Judgment and/or Adjudication** The Motion for Summary Judgment or Adjudication by Plaintiff Brykrist Development, Inc. is CONTINUED to 5/20/25. Defendants' request for judicial notice of bankruptcy court filings is granted. Defendant's objections to the Redsun declaration (ROA 52) are overruled. Plaintiff's objections to the Stewart declaration (ROA 62) are overruled. Plaintiff's objections to the Witten declaration (ROA 63) are also overruled. "[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law. That is because of the general principle that a party who seeks a court's action in his favor bears the burden of persuasion thereon. (See Evid.Code, § 500.) There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, footnote omitted.) Section 437c, subdivision (p) provides, "(1) A plaintiff or cross-complainant has met that party's burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of